

1. You are about to sit an online assessment

You have a 24-hour period in which to complete this exam. This 24-hour period is the time during which you can arrange to take the exam. It is NOT the length of the exam.

2. Advice on the contents of the exam and technical support

You will be able to raise any question as to *any patent ambiguity or error* on the face of the examination within the **first hour** of the paper being available online. In the Moodle pages for the relevant course we have added a forum called “Academic Examination Questions”. Questions can be posted there, and a response will be given. Questions cannot be asked after the first hour of release, but the earlier questions and answers (if any) will remain available on Moodle.

In case you require technical assistance, please contact our virtual invigilation team at the University of Glasgow Helpdesk

<https://www.gla.ac.uk/help>

Technical support will be available 24 hours per day. To ensure timely responses and that all students receive the same information, you should not contact academic staff directly but instead use the Helpdesk.

3. Completing the exam paper

The notional time allocation for this paper is 3 hours. It should take you no longer than this time to complete the paper (although it is recognised you may want to spend a little more time in planning and polishing your answer). The maximum word limit is 3000. You may decide how to allocate that word limit between each question, but we would expect you to allocate appropriately (e.g. if there are three questions in three hours, you should be aiming to write around 1000 words per question). The examiner will disregard anything written in excess of the overall word limit. You are expected to provide only rudimentary references for any sources: that is, the very minimum to allow identification. These references count in the word limit. You are not expected to use footnotes; if you do, these also count towards your word limit.

4. Time adjustments for students with disabilities

If you have in the past been granted adjustments to your exam time through the University’s Disability Service, allowance is made for these since you have a 24-hour period in which to complete this exam.

5. Enlarging the text

In case you should need to enlarge the text of a PDF document: open Adobe Acrobat; click on the VIEW tab; click on ZOOM and then ZOOM TO; select the desired magnification level.

6. Planning your time

When planning your time, you should allocate half an hour to download the exam paper and a further half hour to upload your answers to

Moodle at the end of the exam. This is important as these times give you the ability to report any problems within the 24-hour exam availability period.

7. Submitting your answers

Acceptable file types for submitting typed documents are: DOC/DOCX; RTF; PDF; XLS/XLSX

Acceptable file types for submitting *high resolution* images are: JPG; PNG; TIF; PDF

In case you are unable to upload your answers to Moodle you may email them to: law-exams@glasgow.ac.uk

Please put all your answers into one document for upload, regardless of how many questions you have answered.

Please include your student ID number and the name of the assessment in the name of your file, e.g. 0201234 Environmental Law exam, but *do not* include your own name (as all assessments are marked anonymously).

8. Declaration of Academic Integrity

Your answers must entirely be your own work. During the 24-hour period that this exam is active, you must not for any reason communicate or collude with other students taking this exam. Note that your exam papers may be processed through Turnitin for plagiarism checking. We may also conduct a further oral examination to check your knowledge and establish that the exam answers are your own.

This declaration incorporates the University's Declaration of Originality which applies to all academic work (see below).

9. Declaring that the work is your own

Before viewing the exam paper, you must check the box below to agree to both this declaration and the University's Declaration of Originality.

[By ticking this box, I declare the originality of my work.]



Subject Qualification: Degree of LL.M, School of Law
Session: 2019/20

Examination Title: Contemporary Issues in
Intellectual Property Law

Course Code: LAW5011_1

Date: Friday 1st May 2020

Time: 14:00

Instructions:

It should take you no longer than **THREE** hours to complete this exam.

Maximum word limit **3000 words**

Answer **THREE** questions.

CONTINUED OVERLEAF

1. 'Whilst it is widely recognised that there are valuable, sometimes life-saving, inventions which are made through the discovery of the new use of a known drug, their protection in patent law is problematic.'
(Lord Justice Floyd in *Warner-Lambert Company v Actavis Group* [2015] EWCA Civ 556)

Discuss.

2. Critically evaluate the protection of trade mark functions under EU law.
3. 'There is no reason in principle ... why a format should not be protectable as a dramatic work if it contains a sufficient record of how the show is to be presented. Today, such formats, in addition to recording the central idea of the show or game, will often contain scripted spoken elements, directions for what the participants should do at particular stages, and details for the staging, lighting and sound effects. A useful test to determine whether there is a protectable dramatic work is to ask whether, using the written script or other record as a basis, it is possible to present a coherent and meaningful show which is capable of being performed.' (*Copinger and Skone James on Copyright*)

What would be the advantages and disadvantages for the market in TV formats if this test was adopted?

4. 'The organisational and financial contribution of publishers in producing press publications needs to be recognised and further encouraged to ensure the sustainability of the publishing industry and thereby foster the availability of reliable information.' (Recital 55 of the Directive on Copyright in the Digital Single Market)

Do you expect the press publishers' right provided under Art. 15 of the Directive to deliver this aim?

5. 'National trade marks continue to be necessary for those undertakings which do not want protection of their trade marks at Union level, or which are unable to obtain Union-wide protection while national protection does not face any obstacles. It should be left to each person seeking trade mark protection to decide whether the protection is sought only as a national trade mark in one or more Member States, or only as an EU trade mark, or both.' (Recital 8 of the EU Trade Mark Regulation)

Discuss.

CONTINUED OVERLEAF

6. Do you think that recent technological developments in artificial intelligence call for a re-assessment of patent law? What reforms, if any, would you propose?
7. 'The strict liability rules for certain online content sharing services, which are mandated by Article 17 of the EU's recently adopted Directive on Copyright in the Digital Single Market should serve as a model for the reconsideration of safe harbour provisions globally.'

Discuss.

8. Following Brexit, what system for the protection of geographical indications should the UK adopt? Why?

END OF QUESTION PAPER